

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
RDK NY INC. d/b/a GREEN ANGEL CBD, OREN
LEVY and RONEN LEVY,

Index No.: 518387/2020

Plaintiffs,

-against-

**AMENDED
COMPLAINT**THE CITY OF NEW YORK, POLICE OFFICER
RODNEY GREENIDGE, POLICE OFFICER JOSHUA
GANSRAW, JOHN DOES-Police Officers as yet
unidentified, FEDERAL EXPRESS CORPORATION,
FEDEX GROUND PACKAGE SYSTEM, INC. and
JOHN DOE- Driver of Fedex Ground Package System,
Inc. Truck as yet unidentified,Defendants.
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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR DEPRIVATION
OF PERSONAL PROPERTY ON BEHALF OF RDK NY INC.
d/b/a GREEN ANGEL CBD AND OREN LEVY**

1. That at all times hereinafter mentioned, plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, was in the business of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned, plaintiff, OREN LEVY, was and still is a resident of the County of Kings, City and State of New York.
3. That at all times hereinafter mentioned, plaintiff, RONEN LEVY, was and still is a resident of the County of Kings, City and State of New York.
4. That on November 2, 2019, and at all times herein mentioned, plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, was and is a domestic business corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. That on November 2, 2019, and at all times herein mentioned, plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, was and is a domestic business corporation duly organized

and existing under and by virtue of the laws of the State of New York.

6. That on November 2, 2019, and at all times herein mentioned, plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

7. That on November 2, 2019, and at all times herein mentioned, plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

8. That on November 2, 2019, and at all times hereinafter mentioned, the plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, conducted business and maintained offices within the State of New York.

9. That on November 2, 2019, and at all times hereinafter mentioned, the plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, was and still is a domestic business corporation, duly authorized to do business in the State of New York.

10. That on November 2, 2019, and at all times hereinafter mentioned, the plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, maintained its principal place of business within the State of New York.

11. That on November 2, 2019, and at all times hereinafter mentioned, the plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, regularly does, or solicits, business in the State of New York.

12. That on November 2, 2019, and at all times hereinafter mentioned, the plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD, received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

13. That on November 2, 2019, and at all times herein mentioned, defendant, FEDERAL EXPRESS CORPORATION, was and is a domestic business corporation duly organized and existing under and by virtue of the laws of the State of New York.

14. That on November 2, 2019, and at all times herein mentioned, defendant, FEDERAL EXPRESS CORPORATION, was and is a domestic business corporation duly

organized and existing under and by virtue of the laws of the State of New York.

15. That on November 2, 2019, and at all times herein mentioned, defendant, FEDERAL EXPRESS CORPORATION, was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

16. That on November 2, 2019, and at all times herein mentioned, defendant, FEDERAL EXPRESS CORPORATION, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

17. That on November 2, 2019, and at all times hereinafter mentioned, defendant, FEDERAL EXPRESS CORPORATION, conducted business and maintained offices within the State of New York.

18. That on November 2, 2019, and at all times hereinafter mentioned, defendant, FEDERAL EXPRESS CORPORATION, was and still is a domestic business corporation, duly authorized to do business in the State of New York.

19. That on November 2, 2019, and at all times hereinafter mentioned, defendant, FEDERAL EXPRESS CORPORATION, maintained its principal place of business within the State of New York.

20. That on November 2, 2019, and at all times hereinafter mentioned, defendant, FEDERAL EXPRESS CORPORATION, regularly does, or solicits, business in the State of New York.

21. That on November 2, 2019, and at all times hereinafter mentioned, defendant, FEDERAL EXPRESS CORPORATION, received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

22. That on November 2, 2019, and at all times herein mentioned, defendant, FEDEX GROUND PACKAGE SYSTEM, INC., was and is a domestic business corporation duly organized and existing under and by virtue of the laws of the State of New York.

23. That on November 2, 2019, and at all times herein mentioned, defendant, FEDEX GROUND PACKAGE SYSTEM, INC., was and is a domestic business corporation duly

organized and existing under and by virtue of the laws of the State of New York.

24. That on November 2, 2019, and at all times herein mentioned, defendant, FEDEX GROUND PACKAGE SYSTEM, INC., was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

25. That on November 2, 2019, and at all times herein mentioned, defendant, FEDEX GROUND PACKAGE SYSTEM, INC., was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

26. That on November 2, 2019, and at all times hereinafter mentioned, the defendant, FEDEX GROUND PACKAGE SYSTEM, INC., conducted business and maintained offices within the State of New York.

27. That on November 2, 2019, and at all times hereinafter mentioned, the defendant, FEDEX GROUND PACKAGE SYSTEM, INC., was and still is a domestic business corporation, duly authorized to do business in the State of New York.

28. That on November 2, 2019, and at all times hereinafter mentioned, the defendant, FEDEX GROUND PACKAGE SYSTEM, INC., maintained its principal place of business within the State of New York.

29. That on November 2, 2019, and at all times hereinafter mentioned, the defendant, FEDEX GROUND PACKAGE SYSTEM, INC., regularly does, or solicits, business in the State of New York.

30. That on November 2, 2019, and at all times hereinafter mentioned, the defendant, FEDEX GROUND PACKAGE SYSTEM, INC., received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

31. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

32. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

33. That prior hereto on January 6, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

34. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the plaintiffs were held on February 13, 2020.

35. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

36. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., employed JOHN DOE-Driver of Fedex Ground Package System, Inc. Truck, as yet unidentified, an agent, servant and/or employee.

37. The plaintiff, OREN LEVY, was the owner of the company known as RDK NY INC d/b/a GREEN ANGEL CBD, located at 1180 Ocean Avenue, in the County of Kings, City and State of New York.

38. The plaintiff OREN LEVY, was in the business of buying and selling hemp plants and products through his company, RDK NY INC d/b/a GREEN ANGEL CBD, located at 1180 Ocean Parkway, in the County of Kings, City and State of New York.

39. Prior to November 2, 2019, a call was made for the plaintiff, OREN LEVY, to Fox Holler Farms in Vermont, placing an order of 106 pounds of hemp products that consisted of nine (9) boxes totaling the amount of \$17,000, of which the plaintiff would be profiting from said order in the amount of \$60,000-\$100,000.

40. The plaintiff, OREN LEVY, was supposed to receive the shipment through the defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., from Fox Holler Farm in Vermont, but was indisposed due to being hospitalized for two (2) days. Instead of having the shipment delivered at his place of business located at the address of 1180 Ocean Avenue, he decided to have the order sent to his brother's address, the plaintiff, RONEN LEVY, at 2425 Kings Highway, in the County of Kings, City and State of New York.

41. The plaintiff, OREN LEVY, received notification that his packages from Fox Holler Farm, in Vermont was seized by the Vermont Police Department, while tracking the same through a track number from the defendants, defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC. The plaintiff learned that defendants, FEDERAL EXPRESS CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE –Driver Fedex Ground Package System, Inc. truck notified the Vermont Police Department of packages of illegal substance such as marijuana were being delivered at 2425 Kings Highway, in the County of Kings, City and State of New York. Said packages were sent to the Vermont Police Department.

42. The plaintiff, RONEN LEVY, contacted the Vermont Police Department, to inquire the status of his packages to be delivered at 2425 Kings Highway, in the County of Kings, City and State of New York. He was informed that the packages have been cleared, the paperwork was lawful and proper and the shipment was going to be delivered at the location requested and also apologized for the inconvenience.

43. Thereafter, the plaintiff, OREN LEVY, was tracking down for his packages to be delivered after all was cleared by the Vermont Police Department, The plaintiff learned that defendants, FEDERAL EXPRESS CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE-Driver of Fedex Ground Package System, Inc. truck notified the defendant, THE CITY OF NEW YORK, and the packages were confiscated once again, this time by defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA

GANSHAW and JOHN DOES-Police Officers as yet unidentified, acting as agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, after the defendant, JOHN DOE-Driver of the Fedex Ground Package System, Inc. Truck, brought the packages of illegal products assumed to be marijuana to the Precinct.

44. The defendants, THE CITY OF NEW YORK, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, had knowledge and learned that the packages were of hemp products and not marijuana as assumed, nevertheless they refused to release the same and as a result the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD, OREN LEVY, were caused to be deprived of their business and livelihood.

45. By the reason of the foregoing, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR CONVERSION, TRESPASS,
TORTIOUS INTERFERENCE WITH PERSONAL PROPERTY ON BEHALF OF
RDK NY INC. d/b/a GREEN ANGEL CBD AND OREN LEVY**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, OREN LEVY, was an owner of a company known as RDK NY INC. d/b/a GREEN ANGEL CBD, which is based in Brooklyn, New York, doing business of buying and selling of hemp products.

48. Prior to November 2, 2019 and at all times hereinafter mentioned and upon information and belief, the plaintiff, OREN LEVY, placed an order to Fox Holler Farms, located in Vermont. The order consists of 106 lbs of hemp, which equals to nine (9) boxes in the amount

of costs for \$17,000. From the order the plaintiff would make a profit in the amount between \$60,000 to \$100,000.

49. The plaintiff, OREN LEVY, was supposed to receive a shipment at this place of business, but due to being indisposed due to being hospitalized for two (2) days, he decided to have the products to be delivered at his brother's residence, the plaintiff, RONEN LEVY at 242 Kings Highway, in the County of New York, City and State of New York.

50. As a result of the delivery by Fox Holler Farms, the products were confiscated by the Vermont Police Department after being reported of illegal packages assumed to be marijuana from an agent from the Fedex Ground Package System, Inc. The plaintiff contacted the Vermont Police Department where the order of the products was cleared and documentation for the same were in good standing and released to be delivered at the designated destination.

51. The plaintiff tracked he delivery to only learned that defendants, FEDERAL EXPRESS CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE-Driver of Fedex Ground Package System, Inc. truck reported illegal packages that consist of hemp products were once confiscated this time by the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, acting as agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, after it was reported once again by an agent from Fedex Ground Package System, Inc. by bringing said products which was assumed to be marijuana to the precinct. The defendants refused to release the packages to the plaintiffs.

52. Stemming from the aforementioned, all of the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER GANSHAW and JOHN DOES-Police Officers as yet unidentified, trespassed, had actual knowledge with intent to withhold and/or deprive plaintiffs' property when they refused to return the same after learning that the packages were of hemp products which was legal to sell and not marijuana as assumed originally by the defendant, and JOHN DOE-Driver of Fedex Ground Package System, Inc. truck, who reported the package to be of illegal products to the defendants.

53. As a result, the plaintiffs were deprived in retrieving their packages that consist of hemp products which was ordered for the purpose of their business. Knowing that the products was not marijuana as assumed, the defendants coerced plaintiffs and told that their paperwork was sufficient in an attempt to arrest the plaintiff, OREN LEVY.

54. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, that defendants, FEDERAL EXPRESS CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE-Driver of Fedex Ground Package System, Inc. truck, who have committed the acts of trespass, conversion and tortious interference with personal property alleged herein by refusing to release the packages of the products purchased by the plaintiffs for business purposes which was assumed was an illegal substance such as marijuana, but was actually hemp products.

55. By the reason of the foregoing, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF RDK NY INC.
d/b/a GREEN ANGEL CBD, OREN LEVY and RONEN LEVY**

56. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "55" inclusive with the same force and effect as if more fully set forth at length herein.

57. The defendants were negligent, reckless and careless in making false claims and/or a statement and surrendering the packages assumed of illegal products, such as marijuana this time to the defendants; in confiscating the packages refusing to return to the plaintiffs, after learning that the packages contained of hemp products which the plaintiff was in the business of selling and buying the same; in depriving the plaintiffs of their livelihood; in withholding plaintiffs' goods; in creating a media spectacle of the confiscation of the plaintiffs' goods which

defendants' knew or should have known were legal hemp products; in knowingly being aware that plaintiff's property was legal, but refused to return plaintiffs' property; in depriving plaintiffs' property; in carelessly published and publicized the incident on a variety of public platforms including but not limited to Facebook, Twitter and Instagram; and were otherwise negligent.

58. At all times herein mentioned, POLICE OFFICER RODNEY, GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers yet unidentified were acting within their scope of employment for the City of New York, and the New York City Police Department and as such The City of New York is responsible for their conduct under respondeat superior.

59. As a result the plaintiffs were caused to be deprived of their business and livelihood, sustained serious injuries, the full extent of which are currently unknown, including, but not limited to, loss and conversion of property, specifically hemp, in the amount of \$100,000; property damage, damage to reputation and credit, loss of earnings; damage to his businesses; attorney's fees for the baseless criminal proceedings; loss of earnings capacity and capability; mental anguish and other psychological injuries; required and requires medical treatment; fear, anxiety, shame, humiliation, indignity; property damage, damage to reputation and credit, loss of earnings; difficulty sleeping; and all damages sustained as a result of the defendants conduct.

60. By the reason of the foregoing, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF RDK NY INC.
d/b/a GREEN ANGEL CBD AND OREN LEVY**

61. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "60" inclusive with the same force and effect as if more fully set forth at length herein.

62. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, who confiscated the packages of hemp products which was ordered from Fox Holler Farms in Vermont, for business purposes belonging to the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, and refused to return the same which deprived the plaintiffs of their business and livelihood.

63. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

64. By the reason of the foregoing, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON BEHALF OF RDK NY INC. d/b/a GREEN ANGEL CBD AND OREN LEVY

65. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "64" inclusive with the same force and effect as if more fully set forth at length herein.

66. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY.

67. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers,

including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

68. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

69. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

70. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

71. That as a result of the aforesaid false arrest and confinement, plaintiff, OREN LEVY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

72. As a direct and proximate result of this unlawful conduct, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
ON BEHALF OF RDK NY INC. d/b/a GREEN ANGEL CBD AND OREN LEVY**

73. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "72" inclusive with the same force and effect as if more fully set forth at length herein.

74. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

75. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW, JOHN DOES-Police Officers, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE-Driver of Fedex Ground Package System, Inc. truck as yet unidentified, herein-above alleged.

76. By the reason of the foregoing, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF RONEN LEVY**

77. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "76" inclusive with the same force and effect as if more fully set forth at length herein.

78. That prior hereto on December 11, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

79. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, RONEN LEVY, was lawfully present at or about the premises known as the 75th Precinct, located at 1000 Sutter Avenue, in the County of Kings, City and State of New York.

80. While at the aforementioned location voluntarily and under pretenses, the plaintiff, RONEN LEVY, was approached and was falsely arrested by the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified. The plaintiff was handcuffed and taken under police custody where he was placed in a holding place at the 75th Precinct and was kept there until 2:30 am the following day, on November 3, 2019 at which time the plaintiff was transported to Kings County Central Booking where he was held for multiple hours until he was released at approximately 8:00 pm, on November 3, 2019.

81. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, RONEN LEVY, was falsely arrested by defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

82. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

83. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, RONEN LEVY, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

84. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on

reasonable grounds and not founded upon an arrest warrant.

85. That as a result of the aforesaid false arrest and confinement, plaintiff, RONEN LEVY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

86. By the reason of the foregoing, the plaintiff, RONEN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF RONEN LEVY**

87. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "86" inclusive with the same force and effect as if more fully set forth at length herein.

88. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, RONEN LEVY.

89. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

90. By the reason of the foregoing, the plaintiff, RONEN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF RONEN LEVY**

91. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "90" inclusive with the same force and effect as if more fully set forth at length herein.

92. That on November 2, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

93. That the defendant, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged

94. By the reason of the foregoing, the plaintiff, RONEN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF RONEN LEVY**

95. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "94" inclusive with the same force and effect as if more fully set forth at length herein.

96. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW, JOHN DOES-Police Officers as yet unidentified, that defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE –Driver of Federal Express Corporation truck acted intentionally, recklessly and with utter

disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

97. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, RONEN LEVY.

98. That as a result of said intentional and negligent acts, the plaintiff, RONEN LEVY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

99. By reason of the foregoing, the plaintiff, RONEN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF RONEN LEVY**

100. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "99" inclusive with the same force and effect as if more fully set forth at length herein.

101. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, RONEN LEVY.

102. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

103. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

104. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

105. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

106. As a direct and proximate result of this unlawful conduct, the plaintiff, RONEN LEVY, sustained the damages hereinbefore alleged.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF RONEN LEVY**

107. The plaintiff repeat and realleges each and every allegation set forth above numbered "1" through "106" inclusive with the same force and effect as if more fully set forth at length herein.

108. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

109. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers, that defendants, FEDERAL EXPRESS CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC., and JOHN DOE –Driver of Fedex Ground Package System, Inc. truck as yet unidentified, herein-above alleged.

110. By the reason of the foregoing, the plaintiff, RONEN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR NEGLIGENCE
AGAINST DEFENDANTS, FEDERAL EXPRESS CORPORATION, FEDEX
GROUND PACKAGE SYSTEM, INC. AND JOHN DOE-DRIVER ON BEHALF
OF RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY**

111. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "110" inclusive with the same force and effect as if more fully set forth at length herein.

112. The defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., including but not limited to JOHN DOE, acting as an agent, servant and/or employee, were negligent, reckless and careless in making a false claim and/or a statement and surrendering the packages assumed of illegal products, such as marijuana, but were actually hemp products to the Vermont Police Department, prior to being delivered at 2425 Kings Highway, in the County of Kings, City and State of New York.

113. The defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., including but not limited to JOHN DOE, acting as an agent, servant and/or employee, were negligent, reckless and careless in making another false claim and/or a statement and surrendering the packages assumed of illegal products, such as marijuana this time to the defendants, THE CITY OF NEW YORK, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, which said defendants confiscated the packages refusing to return to the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, after learning that the packages contained of hemp products which the plaintiff was in the business of selling and buying the same.

114. As a result the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, were caused to be deprived of their business and livelihood.

115. By the reason of the foregoing, the plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, sustained damages in an amount exceeding the jurisdictional

limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR
NEGLIGENCE AGAINST THE DEFENDANTS, FEDERAL EXPRESS
CORPORATION, FEDEX GROUND PACKAGE SYSTEM, INC.
AND JOHN DOE-DRIVER ON BEHALF OF RONEN LEVY**

116. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "115" inclusive with the same force and effect as if more fully set forth at length herein.

117. The defendants, FEDERAL EXPRESS CORPORATION and FEDEX GROUND PACKAGE SYSTEM, INC., including but not limited to JOHN DOE, acting as an agent, servant and/or employee, were negligent, reckless and careless in making a false claim and/or a statement and surrendering the packages of assumed of illegal products, such as marijuana to the defendants, THE CITY OF NEW YORK, POLICE OFFICER RODNEY GREENIDGE, POLICE OFFICER JOSHUA GANSHAW and JOHN DOES-Police Officers as yet unidentified, prior to being delivered as scheduled at the plaintiff's residence, RONEN LEVY, located at 2425 Kings Highway, in the County of Kings, City and State of New York, which resulted said plaintiff to be falsely arrested by the defendants once arrived at the police station to collect the packages containing of hemp products.

118. As the result of said negligence, the plaintiff, RONEN LEVY, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

119. By the reason of the foregoing, the plaintiff, RONEN LEVY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiffs, RDK NY INC.

d/b/a GREEN ANGEL CBD and OREN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD, OREN LEVY and RONEN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiffs, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Sixth** Cause of Action; plaintiff, RONEN LEVY, demands judgment both compensatory, and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the, **Seventh** Cause of Action; plaintiff, RONEN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, RONEN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, RONEN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, RONEN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiffs, RONEN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiffs' RDK NY INC. d/b/a GREEN ANGEL CBD and OREN LEVY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action; plaintiff, RONEN LEVY, demands judgment both compensatory and exemplary in an amount

exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
March 1, 2021

Yours, etc., 

SANFORD A. RUBENSTEIN, ESQ.
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Attorneys for Plaintiffs
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OREN LEVY
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Brooklyn, New York 11241
(718) 522-1020
File No.: 19RL11-02

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

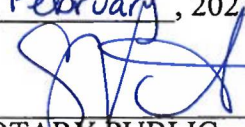
COUNTY OF KINGS)

OREN LEVY, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



OREN LEVY

Sworn to before me this 25
of February, 2021



NOTARY PUBLIC

SUZANNE VALENTINE
Commissioner of Deeds, City of New York
No. 4-10061
Certificate Filed in Queens County
Term Expires October 1, 2022